

25NNCV07856 25NNCV07856

County: los-angeles

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Case Number: 25NNCV07856 Hearing Date: June 26, 2026 Dept: A

Motion TO COMPEL ARBITRATION

Los

Angeles Superior Court Case # 25NNCV07856

MP: Petitioner

David Yurman

RP: Respondent State Farm Mutual Automobile Insurance Company

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

On

November 5, 2025, Claimant/Petitioner David Yurman ("Petitioner") filed a Petition to Assign Case Number for Purpose of Filing and Hearing Discovery Motions (Insurance Code, § 11580.2(f)) against State Farm Mutual Automobile Insurance Company ("Respondent").

MOTION ON CALENDAR:

On March

20, 2026, Petitioner filed a Motion to Compel Underinsured Motorist Arbitration and Set an Arbitration Completion Date.

On March 27, 2026, Respondent filed a "Response and Opposition to the Petition." On June 18, 2026, Petitioner filed a reply.

LEGAL

STANDARD:

C.C.P. §

1281.2(a) states in relevant part: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists...."

"The award shall be made within the time fixed therefor by the agreement or, if not so fixed, within such time as the court orders on petition of a party to the arbitration. The parties to the arbitration may extend the time either before or after the expiration thereof. A party to the arbitration waives the objection that an award was not made within the time required unless he gives the arbitrators written notice of his objection prior to the service of a signed copy of the award on him."

(C.C.P. § 1283.8.) "[A]bsent an arbitration completion deadline established by agreement, section 1283.8 gives the trial court the power, on petition of a party to the arbitration, to set a date by which the arbitration proceeding must be completed and the award rendered.[] The better practice is to establish that date when the case is first ordered to arbitration. However, the court has discretion to entertain a petition and set a completion date even after the arbitration is in progress. Of course, any date chosen (whether before or after arbitration has commenced)

must be reasonable in light of the circumstances presented by the particular arbitration.” (Bosworth v. Whitmore (2006) 135 Cal.App.4th 536, 550 [footnote omitted].)

Insurance

Code, § 11580.2 regarding uninsured motorist coverage/claims states that “[a]ny arbitration instituted pursuant to this section shall be concluded ... [w]ithin five years from the institution of the arbitration proceeding.” (Ins. Code, § 11580.2(i)(2)(A).)

ANALYSIS:

Petitioner

seeks an order setting a firm arbitration completion date within 90 days of the hearing and the issuance of an Order to Show Cause within 30 days of the hearing to confirm the parties have secured an arbitration date within the timeframe. Petitioner argues that an arbitration completion date is necessary because he is prejudiced and continues to suffer as a result of Respondent’s inactions and delays.

By way of

background, Petitioner asserts that at the time of the underlying September 17, 2024 collision, Respondent had provided Petitioner with underinsured motorist coverage for his bodily injuries. (Burunsuzyan Decl., Ex. A [State Farm Policy].) On June 30, 2025, Petitioner made a Demand for Underinsured Motorist Arbitration, of which Respondent confirmed receipt. (Id., Exs. B [June 30, 2025 Demand for Arbitration Letter], C [July 28, 2025 State Farm Response Letter].) From August 2025 to March 2026, the parties engaged in meet and confer efforts to select an arbitrator and on March 4, 2026, Respondent agreed to David M. Karen, Esq. of Judicate West. (Id., Exs. D-G [Emails].) However, within the next week, Respondent instructed the arbitrator’s case manager to delay scheduling, claiming via a March 13, 2026 email that it was “too early to set a date” and that additional discovery was needed. (Id., Exs. G [Emails], H [March 6, 2026 Judicate West Email].) The parties’ counsel discussed a mid-to-late August arbitration date, but the parties had differing views on discovery parameters. (Id., Exs. G, I [Petitioner’s March 13, 2026 Letter], J [March 17, 2026 Judicate West Email offering August dates].)

In

opposition, Respondent argues that the motion should be denied because it has agreed to arbitrate the dispute with the proposed arbitrator, has never refused arbitration, and there are two outstanding demands for medical examinations remaining that Petitioner refuses to attend—an independent medical exam and a second medical examination specialized in orthopedics. Respondent argues that if this motion is granted before discovery is complete, this will either require a continuance of the arbitration or force Respondent to arbitrate without adequate discovery. (Response at pp.2-3, ¶¶6-10; McNulty Decl., Exs. B [Demand for Physical Examination with Dr. Peter-Brian Andersson], C [Respondent's February 2, 2026 Email requesting the IME be rescheduled due to the examining doctor's unexpected hospitalization], D [Emails], E [Notice of Continuance of Demand for Physical Examination of Plaintiff with Dr. Andersson], F [Emails], G [Notice of Continuance of Demand for Physical Examination of Plaintiff with Dr. Andersson], H [Demand for Physical Examination of Plaintiff with Dr. Brian D. Rudin], I [Emails], J [Petitioner's Objections to the IMEs], K [Respondent's response letter], L [Final Notices of Demand for Physical Examination of Claimant], M-P [Emails].) In large part, Petitioner refused to attend the IMEs or proceed with any further discovery until Respondent scheduled an arbitration hearing.

Respondent

relies on *Spear v. California State Auto. Assn.* (1992) 2 Cal.4th 1035, wherein the Supreme Court discussed that under section 1281.2, “a party to an agreement to arbitrate may not bring an action to compel specific performance of the arbitration provision until he or she can allege not only the existence of the agreement, but also that the opposing party refuses to arbitrate the controversy. Therefore, it appears that a cause of action to compel arbitration does not accrue until one party has refused to arbitrate the controversy.” (Id. at 1041-42.) Respondent argues that it has had good faith discussions about arbitration and discovery and that it has not refused to arbitrate the matter. Respondent also contends that the Insurance Code provides for a five-year completion deadline, such that the 90-day deadline is improper.

In reply,

Petitioner argues that judicial intervention is necessary to ensure Respondent commits to arbitration instead of allowing Respondent to preserve an open-ended discovery period. Petitioner argues that other than two IMEs, expert discoverer, and a recently noticed records

deposition, Respondent has not identified additional discovery it intends to conduct and that its arguments that there “may” still be ongoing future discovery is speculative. (Reply at p.3.) Petitioner represents that the remaining discovery matters can be completed within 90 days. (Id. at p.4.) He also argues that he already agreed to appear for the two IMEs on condition that Respondent agree not to engage in limitless future discovery and offered to appear for one and submit additional IMEs to the Arbitrator—which Respondent rejected. (Id. at p.5.)

Based on the emails between counsel, it appears that the parties have agreed to arbitrate the matter and chose a mutually agreeable arbitrator, but the arbitration has not yet commenced. The Court understands that the parties are at an impasse—Respondent seeks to conduct Petitioner’s IME before the arbitration begins, while Petitioner seeks an arbitration completion date before submitting to an IME.

Although Respondent has not outright refused to arbitrate the matter, by its conduct with delaying the arbitration until discovery has been completed, it has in essence refused to arbitrate. Reliance on the five year rule is likewise misplaced. Five years has never been the goal, but an outward limit tantamount to the five year rule in civil litigation encompassed in Code of Civil Procedure 583.310 (setting forth a nondiscretionary dismissal if an action is not commenced within five years). Respondent relies on Insurance Code, § 11580.2(o), which states:

If an insured ... has failed to submit to a medical examination arranged by the insurer within 20 days of the insurer’s request, the insurer may, at any time prior to 30 days before the actual arbitration proceedings commence, request, and the insured shall furnish, wage loss information or medical treatment record releases, and the insurer may require the insured, except during periods of hospitalization, to make himself or herself available for a medical examination. The wage loss information or medical treatment record releases shall be submitted by the insured within 10 days of request and the medical examination shall be arranged by the insurer no sooner than 10 days after request, unless the insured agrees to an earlier examination date, and not

later than 20 days after the request. If the insured fails to comply with the requirements of this subdivision, the actual arbitration proceedings shall be stayed for at least 30 days following compliance by the insured. The proceedings shall be scheduled as soon as practicable following expiration of the 30-day period.

(Ins.
Code, § 11580.2(o).)

The
parties have engaged in conduct which has resulted in a legal stand-off. Petitioner will not agree to an IME until an arbitration date is set and Respondent will not agree to a date unless the IME has been completed. The Court has a
responsibility to resolve this impasse, and is empowered to do so pursuant to section 1283.8, discussed below.

Based on
subsection 11580.2(o), Respondent is entitled to take Petitioner's IME and Petitioner's failure to submit within a given timeframe is also an issue. To aid the parties in ensuring discovery is completed and the arbitration proceeds in an efficient manner, the Court will set both an IME and arbitration completion date. (*Bosworth v. Whitmore* (2006) 135 Cal.App.4th 536, 550 ["[A]bsent an arbitration completion deadline established by agreement, section 1283.8 gives the trial court the power, on petition of a party to the arbitration, to set a date by which the arbitration proceeding must be completed and the award rendered."].)

While
Respondent argues that it has up to five years to complete the arbitration pursuant to Insurance Code, § 11580.2(i), this subsection sets the outer limit for bringing the arbitration to its conclusion and is not meant to be the date of required completion. (*Bouton v. USAA Casualty Ins. Co.* (2008) 167 Cal.App.4th 412, 419 ["The purpose of section 11580.2, subdivision (f), 'is to offer a means of resolving disputes that is more expeditious and less expensive than litigation. [Citations.] Its beneficiaries include the insurer and the insured....'"]; cf. C.C.P. § 583.310 ["An action shall be brought to trial within five years after the action is commenced against the defendant."] and *Alpha Media Resort Investment Cases* (2019) 39 Cal.App.5th 1121, 1128 [stating that section 583.310 subserves the purpose of encouraging the "expeditious disposition of litigation" and "bring cases to a conclusion, to secure for plaintiffs the relief, and to

defendants, the repose, to which the law entitles them, and to free the court's resources for the efficient adjudication of other claims."].) Respondent's five year argument is antithetical to expeditious disposition of this matter.

Thus, the Court finds that setting an arbitration completion date does not conflict with the five-year outer limit set by Insurance Code, § 11580.2(i)(2)(A).

The motion is granted. The Court will set an arbitration completion date, as well as order the parties to meet and confer regarding conducting Petitioner's IMEs. In setting the dates, the Court is guided by the initial Demand for Underinsured Arbitration made on June 30, 2025.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Petitioner

David Yurman's Motion to Compel Underinsured Motorist Arbitration and Set an Arbitration Completion Date came on regularly for hearing on June 26, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MOTION

TO COMPEL UNDERINSURED MOTORIST ARBITRATION AND SET AN ARBITRATION COMPLETION DATE IS GRANTED.

THE COURT

SETS AN ARBITRATION COMPLETION DATE OF DECEMBER 1, 2026, OR SUCH OTHER DATE STIPULATED TO BY THE PARTIES, SUCH STIPULATION TO BE FILED WITH THE COURT.

THE COURT

ORDERS THE PARTIES TO MEET AND CONFER IN GOOD FAITH AND FULL COOPERATION TO SCHEDULE AND CONDUCT PETITIONER'S INDEPENDENT MEDICAL EXAMINATIONS TO BE COMPLETED BY JULY 28, 2026, OR ON A MUTUALLY AGREEABLE DATE(S) DECIDED BY THE PARTIES.

THE COURT

WILL SET AN ORDER TO SHOW CAUSE FOR JULY 28, 2026 AT 9:00 A.M. TO CONFIRM THE PARTIES HAVE SECURED AN ARBITRATION DATE AND COMPLETION OF IME WITHIN THIS TIMEFRAME. IF THE PARTIES HAVE SECURED AN ARBITRATION DATE AND COMPLETED THE IME THEY MAY FILE A JOINT NOTICE INFORMING THE COURT THAT AN ARBITRATION DATE HAS BEEN SET AND THE IME HAS BEEN COMPLETED PRIOR TO THE OSC HEARING, THEN THE OSC WILL BE TAKEN OFF-CALENDAR.

THE COURT

SETS AN ORDER TO SHOW CAUSE FOR DECEMBER 8, 2026 AT 9:00 AM FOR PROOF OF COMPLETION OF THE ARBITRATION. LIKEWISE, IF THE PARTIES FILE A JOINT NOTICE THAT ARBITRATION HAS BEEN COMPLETED THE MATTER MAY BE TAKEN OFF CALENDAR PROVIDED THE PARTIES HAVE LIKEWISE AGREED TO A SUBSEQUENT DATE TO CONFIRM ANY ARBITRATION AWARD.

PETITIONER TO GIVE NOTICE.

IT IS SO

ORDERED.